

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC050163: LUIS MENDEZ, et al. vs GOLD COAST RADIO, LLC, et al.
07/27/2026 in Department 21
Motion to Set Aside/Vacate Default

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendants Gold Coast Radio LLC and Gerardo Ceja’s Motion to Set Aside Default (CCP §§ 473.5 & 473) (*Opposed*)

Tentative Ruling: Defendants Gold Coast Radio, LLC and Gerardo Ceja’s motion to set aside the defaults entered on May 8, 2026 is GRANTED pursuant to the mandatory attorney-fault provision of CCP § 473(b). Plaintiff’s request for sanctions is DENIED.

Defendants shall file and serve their proposed demurrer within 7 calendar days.

Counsel for Defendant is to give notice within two (2) court days.

Discussion:

Mandatory relief under CCP § 473(b)

Mandatory relief applies where a timely application to vacate a clerk-entered default is accompanied by an attorney’s sworn declaration establishing that the default resulted from the attorney’s mistake, inadvertence, surprise, or neglect. The attorney’s neglect need not be excusable. (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 437-440, 443-444.)

The motion was filed 14 days after entry of default, includes a proposed demurrer, and is supported by defense counsel’s sworn declaration. Although counsel does not expressly state that the default was his fault, he acknowledges that he chose not to file the proposed demurrer because he expected further communication from Plaintiffs’ counsel. His failure to file a

responsive pleading caused the defaults, and there is no evidence that Gold Coast Radio or Ceja knowingly participated in that decision.

Counsel's reliance on continued discussions was based on Mr. Ramirez's 4/21/26 representation that he would address counsel's concerns upon his return from vacation. Even if this reliance may have been unreasonable in light of the April 16, 2026 letter setting a May 4, 2026 deadline (which the court does not find), that circumstance does not defeat mandatory relief, which applies even to inexcusable attorney neglect or a misguided litigation decision where the client did not knowingly participate. (*Talbott v. Ghadimi* (2025) 109 Cal.App.5th 967, 977-984.)

The defaults entered against Gold Coast Radio, LLC and Gerardo Ceja on May 8, 2026 are vacated. Defendants shall file and serve their proposed demurrer within 7 calendar days of notice of this ruling.

Plaintiff's request for sanctions is denied. Plaintiff's declaration fails to specify counsel's hourly rate or the number of hours spent on the motion, or provide the court with any other indication as to any reasonable compensatory legal fees or costs. Additionally, the Court finds Defense counsel was justified in relying upon Plaintiff counsel's representation that he would be addressing Defense counsel's concerns upon his return from vacation.

Plaintiffs' request for an immediate mediation order is denied without prejudice to the Court addressing mediation at a future case management conference.

Moving party to give notice.